

ALL INDIA POLITICAL PARTIES MEET AICON'2026

**AGENDA - The Indian Security Doctrine : Addressing Hybrid
Warfare, Internal Destabilisation and Cross Border threat**

Prepared for the Hon'ble Members of the All India Political Parties Meet

सत्यमेव जयते "Truth alone triumphs"
धर्मचक्र-प्रवर्तनाय "for the propagation of the Wheel of Law"

Letter from the Executive Board

Honourable Members,

We are honoured and privileged to welcome you all to the All India Political Parties Meet at the AICON MUN'26.

The onus lies on you to proffer insightful contributions, drawing from well- researched knowledge, to foster a robust and intellectually stimulating debate and discussion. This background guide has been prepared to serve as the starting point for your research. However, it is by no means exhaustive.

The agenda before the House, “The Indian Security Doctrine - Addressing Hybrid Warfare, Internal Destabilisation and Cross-Border Threats,” is one that demands far more than a superficial understanding of national security. In an era where the nature of conflict is rapidly evolving, the security of a nation extends beyond its borders and armed forces to encompass cyberspace, critical infrastructure, information ecosystems, financial networks, technology, intelligence and the resilience of democratic institutions.

As members of the AIPPM, you are expected to approach this agenda not merely as participants in a debate, but as policymakers entrusted with the responsibility of representing the political positions, ideologies and interests of your respective portfolios. We expect thorough and credible research, a clear understanding of the constitutional and legal framework, familiarity with existing government policies and institutions, and an awareness of both historical developments and contemporary security challenges.

We expect discussion that goes beyond prepared speeches and allows the House to meaningfully engage with the complexities of the agenda. Most importantly, we expect a strong, substantive and informed debate, where arguments are supported by facts, constitutional principles, legislation, case laws, committee reports and credible sources rather than rhetoric alone.

With that being said, we look forward to witnessing a committee marked by spectacle, deliberation, debate and policy over rhetoric.

Warm Regards,

Chairperson-Yashwanth CR, yashwanthcr780@gmail.com

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Jai Hind!

Rules of Procedure

1) Committee Structure-

- Chairperson, Vice Chairperson, Rapporteur
- Ruling party: To be seated to the right of the chairperson
- Opposition & Other parties: To be seated to the left of the chairperson

2) Language Policy-

- This is a multilingual committee and thus, members are allowed to use their vernacular languages for delivering speeches. However, members should use only one language per speech to maintain clarity and must provide a transcript of their speech to the Executive Board if it is given in vernacular language.

3) Opening Formalities-

3.1) **Roll Call** : The session starts with a roll call in which you need to mark your presence. There will be no present and voting.

3.2) **Quorum** : At least one-third of the members must be present to commence the proceedings.

3.3) **Agenda Setting** : Members must table the agenda and propose the order for discussion.

3.4) **Opening Statements**: All the members are required to express their initial positions on the agenda. It will be given collectively and is exhaustive in nature.

4) There shall be creation of two sessions-Public Session and Private Session.

5) **Public Session**: There will be a presence of the media. Statements given by the members are displayed to the public so one has to be cautious with party policy and ideology. This will be used to debate sub-agenda related to the overall agenda.

6) **Private Session**: This session will be similar to a zero hour, and members can discuss any other National Issue except the agenda.

7) Points-

7.1) Point of Personal Privilege: A point of personal privilege is usually raised if someone has any physical discomfort during the proceedings of the committee. The point may also be used to get repetition of a part of a statement which was not audible/clear. But in this committee we shall permit its usage only for audibility issues or clarification/ repetition.

7.2) Point of Procedural Enquiry: A member may rise to a Point of Procedural Enquiry requesting an explanation from the Executive Board on the Rules of Procedure or the committee proceedings. This point may not interrupt a Speaker.

7.3) Point of Order: Points of Orders shall be raised only on the factual inaccuracy in the speech of any member. The line has to be quoted verbatim in order to assert the same followed by an unquote with the correct established fact. Please note, the Executive Board shall be the sole adjudicator of the same.

7.4) Point of Information: This is a point in which a question in the context of the speech may be asked. The Executive Board shall decide if they would accept Points of Information in writing or verbally depending on the committee dynamics.

8) General Conduct-

8.1)**AI usage:** This committee has a strict policy against AI and Internet usage. All speeches must be the original work of the Members. Any plagiarism or reference made to AI, including humanised content shall be marked accordingly.

8.2)**Desk Tapping&Sloganeering:** Members are allowed to tap their desks in agreement to a fellow Member's speech/ statements. Members are welcome to sloganeer throughout the committee proceedings. However, such interferences shall not be entertained while a Member is speaking.

8.3)The decision of the Executive Board is **final and binding**.

8.4)Any instance of **Right-of-Reply** shall be adjudicated by the Secretary- General or any authorised member of the Secretariat. Decisions are final and binding.

Accepted Sources

1. Government Reports (Each ministry publishes its own reports including External Affairs Ministry)
2. Press Trust of India(PTI),Press Information Bureau(PIB)
3. Government Websites
4. Government run News Channels i.e.,RSTV,LSTV,DD News
5. Standing Committee Reports/Commission Reports
6. Right to Information(RTI)evidence
7. Parliamentary Standing Committee Reports
8. Parliament Questions and Answers
9. Judgements from the Hon'ble courts of Judiciary and citations from Manupatra and SCC Online
10. Constitutional Law Commentaries such as MP Jain and DD Basu.

NOTE: *These sources are merely indicative and not exhaustive. The authoritative value of a source will be decided on a case to case basis.*

1)Introduction and Historical Evolution of the Indian Security Doctrine

1.1) Introduction-

- Since independence, India's understanding of national security has changed considerably. In the early years of the Republic, security was largely viewed through the traditional lens of protecting India's territory, sovereignty and borders from external aggression. Over time, however, the nature of threats facing the country has become more complicated.
- Terrorism, insurgency, cyberattacks, disinformation, cross-border infiltration, organised crime and the activities of non-state actors have created security challenges that cannot always be classified as either purely external or purely internal.
- This changing nature of threats is particularly important in the context of India's geographical and geopolitical position. India shares land borders with several countries, including two nuclear-armed neighbours, while also maintaining extensive maritime interests in the Indian Ocean.
- At the same time, developments within the country can have consequences beyond its borders, and external actors can exploit existing social, political or economic vulnerabilities within India.
- The idea of hybrid warfare has become increasingly relevant in this environment. Unlike conventional warfare, where military forces are generally the principal instruments of conflict, hybrid warfare can involve a combination of conventional military pressure, terrorism, cyber operations, information warfare, economic measures, proxy groups and political influence. Such methods make it difficult for a state to identify the exact nature of an attack and determine an appropriate response.
- India's security doctrine has therefore evolved alongside these changing circumstances. The focus is no longer limited to the ability of the armed forces to respond to a conventional attack. Intelligence, cybersecurity, border management, counter-terrorism, diplomatic engagement, internal stability and technological capabilities have all become important components of national security.

- The present agenda, “The Indian Security Doctrine: Addressing Hybrid Warfare, Internal Destabilisation and Cross-Border Threats,” seeks to examine this evolution and the challenges that accompany it. At the heart of the discussion is a simple but difficult question: How can India protect its national interests and territorial integrity when threats increasingly operate in the space between war and peace?

1.2) Historical Evolution-

1947-1962: The Early Years

- When India became independent in 1947, the immediate security concerns were largely centred around territorial integrity, political consolidation and the protection of the newly formed Republic. The first Indo-Pakistani conflict over Jammu and Kashmir in 1947- 48 demonstrated that military preparedness would remain an essential part of India’s security policy.
- At the same time, India attempted to maintain strategic independence in international affairs. The policy of non-alignment allowed India to avoid becoming formally aligned with either of the major Cold War blocs while pursuing its own diplomatic and strategic interests.
- The 1962 Sino-Indian War, however, became a major turning point. India’s military preparedness and strategic assessment were severely tested during the conflict. The experience exposed important weaknesses in India’s defence planning and had a lasting impact on how the country approached national security.

1962-1971: A More Realistic Security Approach

- The lessons of 1962 were followed by a greater emphasis on defence preparedness and military capability. India fought Pakistan again in 1965, and the conflict reinforced the importance of maintaining credible conventional military strength.
- The 1971 Indo-Pakistani War marked another significant moment in India’s strategic history. India employed military, diplomatic and political instruments together, eventually contributing to the creation of Bangladesh. The conflict demonstrated that national security could not always be separated from diplomacy, regional politics and internal developments in neighbouring countries.

- The signing of the Simla Agreement in 1972 subsequently placed greater emphasis on bilateral mechanisms and peaceful resolution of disputes while reaffirming respect for sovereignty and territorial integrity.

1970s-1990s: Internal Security and Nuclearisation

- During the following decades, India's security concerns expanded beyond conventional warfare. Insurgency and separatist movements, particularly in Jammu and Kashmir and the Northeast, increasingly became important elements of the internal-security landscape.

- The situation also highlighted the connection between internal and external security. In several instances, developments within India were influenced by activities or support originating outside its borders. This made counter-insurgency, intelligence gathering and border management increasingly important.

- The nuclearisation of the region added another layer to India's strategic environment. With India and Pakistan eventually becoming declared nuclear powers in 1998, the possibility of conventional conflict existed alongside the risk of nuclear escalation. Maintaining deterrence while managing escalation consequently became an important part of India's security calculations.

1999: The Kargil Conflict

- The Kargil conflict of 1999 was another major turning point. Pakistani soldiers and irregular forces infiltrated positions on the Indian side of the Line of Control, resulting in a limited but intense conflict.

- Kargil exposed gaps in intelligence, surveillance and coordination and prompted a serious examination of India's national-security structure. The conflict also demonstrated that conventional military confrontation remained possible even in a nuclearised region.

- The lessons of Kargil contributed to subsequent discussions on intelligence reform, inter-agency coordination, defence preparedness and the need for a more integrated approach to national security.

2001- 2008: The Rise of Counter-Terrorism

- The terrorist attack on the Indian Parliament in 2001 and the Mumbai attacks of 2008 further changed India's security priorities.
- These attacks demonstrated how terrorist organisations could exploit international networks, porous borders, communication technologies and logistical systems to conduct attacks deep inside Indian territory.
- As a result, greater emphasis was placed on intelligence sharing, counter-terrorism capabilities, coastal security, border management and coordination between central and state agencies.
- The creation and strengthening of institutions such as the National Investigation Agency (NIA) reflected this growing emphasis on dealing with terrorism through a more coordinated national framework.

2010s-Present: The Emergence of Hybrid Threats

- In the last decade, India's security environment has become even more complex. Traditional threats have not disappeared, but they now exist alongside newer forms of confrontation.
- Cyberattacks can target critical infrastructure without a single soldier crossing a border. Social-media platforms can be used to spread disinformation or amplify existing social tensions. Drones can be used for surveillance, smuggling or the movement of weapons. Terrorist organisations and other non-state actors can operate through networks spread across multiple jurisdictions.
- These developments have made the distinction between internal and external security increasingly difficult to maintain.
- India's response has consequently involved a wider range of institutions and capabilities, including the armed forces, intelligence agencies, police forces, diplomatic institutions, cybersecurity bodies and other civilian agencies.

- The challenge is not simply to strengthen each of these institutions individually, but to ensure that they can work together when a threat crosses traditional boundaries.

2) Legal and Constitutional Framework

2.1) Constitutional Framework-

- India's approach to national security operates within a constitutional framework that attempts to balance the sovereign duty of the State to protect the nation with the fundamental rights and democratic freedoms guaranteed to its citizens. The Constitution does not create a single, consolidated "national security code"; instead, security powers are distributed across provisions concerning the Union, States, Fundamental Rights, emergencies, defence and public order.

- **Article 14 guarantees equality before the law and equal protection of the laws.** In the national-security context, it requires security and counter-terrorism measures to operate through a rational and non-arbitrary legal framework. While the State may adopt special measures to address exceptional threats, such measures cannot be based on arbitrary or discriminatory classifications. Article 14 therefore provides an important constitutional check on the implementation of anti-terrorism, surveillance and internal-security policies.

- **Article 19 protects freedoms including speech and expression, peaceful assembly and association, while permitting constitutionally prescribed reasonable restrictions in specified circumstances.** National security, sovereignty and integrity of India, public order and related grounds can justify certain restrictions under Article 19. However, the existence of a security concern does not automatically validate every restriction. In the context of hybrid warfare, this creates a difficult question: how should India distinguish hostile disinformation, foreign influence operations and extremist propaganda from legitimate political criticism, journalism and democratic dissent?

- **Article 21 provides that no person shall be deprived of life or personal liberty except according to procedure established by law.** Judicial interpretation has expanded Article 21 to include substantive protections relating to dignity, privacy and due process. It is therefore central to debates concerning preventive detention, surveillance, counter-insurgency operations and digital monitoring. The State's responsibility to protect citizens from terrorism must operate

alongside its obligation to protect individual liberty. The challenge for India's security doctrine is therefore to create measures that are both effective against threats and constitutionally accountable.

- **Article 22 provides safeguards concerning arrest and detention while also recognising specific constitutional provisions relating to preventive detention.** It establishes procedural protections for persons arrested and creates a constitutional framework for exceptional preventive-detention mechanisms.

- **Article 32 guarantees the Right to Constitutional Remedies.** It lets any person go straight to the Supreme Court of India if their basic fundamental rights are hurt or taken away. It provides an important judicial safeguard against unconstitutional State action, including actions undertaken in the name of national security. The provision reinforces the principle that security agencies and executive authorities remain subject to constitutional review.

- **Article 51A sets out Fundamental Duties of citizens,** including the duty to uphold and protect the sovereignty, unity and integrity of India and to promote harmony and the spirit of common brotherhood. In the context of hybrid warfare, these principles acquire contemporary relevance because national resilience depends not only upon State institutions but also upon citizens' ability to resist misinformation, communal incitement and hostile influence operations.

- **The Constitution distributes legislative authority between the Union and the States through the Seventh Schedule.** Defence, armed forces and several matters concerning national security fall within the Union's domain, while public order and police are primarily State subjects. This creates a crucial federal dimension to internal security. Counter-terrorism, insurgency, border security and hybrid threats frequently require cooperation between Central agencies and State police forces. The constitutional division of powers therefore makes Centre-State coordination essential to India's security architecture.

2.2) The dilemma-

- The central constitutional challenge before the House is therefore not whether India should possess strong national-security powers. It is -

- How can India build a security architecture capable of confronting hybrid warfare, terrorism, cyberattacks and cross-border threats while ensuring that the exercise of those powers remains lawful, proportionate, accountable and consistent with constitutional democracy?

2.3) *Bharatiya Nyaya Sanhita, 2023 (BNS)*- The BNS, in force from 1 July 2024, contains a dedicated chapter on offences affecting the State. Section 147 addresses waging, attempting to wage, or abetting war against the Government of India; Sections 148-150 address conspiracy, preparation and concealment connected with waging war; and Section 152 addresses acts endangering the sovereignty, unity and integrity of India. The Act also provides for extra-territorial application in specified circumstances, including offences committed outside India targeting a computer resource located in India.

2.4) *Unlawful Activities (Prevention) Act, 1967*- The UAPA remains a central statutory framework for dealing with unlawful associations, terrorist organisations, terrorist acts and activities affecting the sovereignty and integrity of India. Its relevance to hybrid threats is particularly significant where terrorism, cross-border networks, recruitment, financing or organised support structures are involved. The statutory framework must, however, be applied according to its defined thresholds and procedural safeguards rather than by treating ordinary dissent as terrorism.

2.5) *Information technology and cyber security*- Cyber incidents raise questions under the Information Technology Act, 2000 and the rules and directions made under it, alongside the institutional role of bodies responsible for cyber incident response. The legal response to cyber-enabled hybrid threats therefore requires coordination between criminal law, cyber-security regulation, technical investigation and international cooperation.

2.6) *National security and preventive measures*- The National Security Act, 1980 provides a preventive-detention framework in specified circumstances. The Ministry of Home Affairs identifies the NSA among the laws administered in its internal-security domain. Preventive powers are distinct from ordinary criminal prosecution and therefore raise important questions concerning statutory conditions, procedural safeguards, review mechanisms and constitutional rights. [Ministry of Home Affairs]

2.7) Institutional and procedural framework- The National Investigation Agency Act, 2008 provides the statutory basis for the NIA's investigation and prosecution of specified offences, particularly those having national and cross-border security implications. The Bharatiya Nagarik Suraksha Sanhita, 2023 provides the current general criminal-procedure framework. Together with intelligence, policing, border-management and diplomatic mechanisms, these institutions form part of India's wider response architecture.

3)Key Committee and Law Commission Reports

3.1) Kargil Review Committee Report, 1999

- In 1999, the Kargil Review Committee headed by Shri K Subrahmanyam, had recommended a review of the National Security Framework for improved decision-making on defence matters. It examined the circumstances surrounding the Kargil conflict and identified structural weaknesses in India's national-security architecture. Its recommendations laid the foundation for a broader review of India's intelligence, defence and internal-security mechanisms. The subsequent reform process recognised that national security required better coordination between intelligence, defence and civilian institutions.

3.2) Eighth Report of the Second Administrative Reforms Commission (ARC), 2008

- The Eighth Report of the Second Administrative Reforms Commission (ARC), titled "Combating Terrorism: Protecting by Righteousness," was presented in June 2008 and examined terrorism as a multidimensional national-security and governance challenge. The Report addresses the nature and genesis of terrorism, India's legal framework, terror financing, institutional and administrative measures, and the role of civil society, media and citizens in combating terrorism. It emphasises that terrorism cannot be addressed solely through conventional security measures and requires effective legal, institutional and societal responses.

4) Landmark cases and Constitutional Jurisprudence

4.1) Naga People's Movement of Human Rights v. Union of India, 1998

- The Supreme Court examined the constitutional validity of the Armed Forces (Special Powers) Act, 1958, as amended, along with the Assam Disturbed Areas Act, 1955. The Court upheld the

constitutional validity of the Central Act and held that the armed forces deployed under AFSPA operate in aid of, and not as a substitute for, the civil power of the State. It further held that the declaration of a “disturbed area” under Section 3 does not confer an arbitrary or unguided power and emphasised compliance with statutory safeguards, including the prompt handing over of arrested persons to the police and periodic review of disturbed-area declarations.

4.2) People's Union for Civil Liberties v. Union of India, 1997

- The Supreme Court examined the interception of telephone communications under Section 5(2) of the Indian Telegraph Act, 1885. The Court recognised telephone conversations as an important aspect of an individual's privacy under Article 21, while holding that interception could be undertaken only upon the existence of a public emergency or in the interest of public safety and on the grounds specified by law. Rather than invalidating the interception power itself, the Court prescribed procedural safeguards to prevent arbitrary or excessive telephone tapping.

4.3) Extra Judicial Execution Victim Families Association v. Union of India, 2016

- The Supreme Court examined allegations of extra-judicial executions involving the Manipur Police and the armed forces in the context of counter-insurgency and anti-terrorism operations. The Court rejected the proposition that the existence of an internal-security situation or a disturbed area could, by itself, justify the use of excessive or retaliatory force. Relying upon its earlier decision in *Naga People's Movement of Human Rights v. Union of India*, the Court held that an allegation of excessive force resulting in death requires a thorough inquiry. The Court also emphasised that a person cannot be automatically characterised as a militant, terrorist or insurgent merely because they are found carrying a weapon in a disturbed area.

4.4) Romesh Thappar v. The State of Madras, 1950

- The Supreme Court examined the validity of restrictions imposed upon freedom of speech and expression under Article 19(1)(a). The case concerned a government order prohibiting the entry and circulation of the journal *Cross Roads* in Madras under Section 9(1-A) of the Madras Maintenance of Public Order Act, 1949. The majority held that, under the constitutional framework then in force, restrictions on freedom of speech under Article 19(2) had to relate to matters undermining the security of the State or tending to overthrow the State, and that the

broader grounds of public safety and maintenance of public order could not independently justify such restrictions. The Court consequently declared Section 9(1-A) unconstitutional and quashed the order restricting circulation of the journal.

4.5) Anuradha Bhasin v. Union of India, 2020

- The Supreme Court examined restrictions on communication and the press in Jammu & Kashmir following the abrogation of Article 370. The Court held that freedom of speech and expression under Article 19(1)(a), and the freedom to carry on trade or business under Article 19(1)(g), through the medium of the internet receive constitutional protection, subject to the restrictions permitted by the Constitution. The Court also discussed the doctrine of proportionality, identifying four stages for examining rights-restricting measures: legitimate goal, suitability or rational connection, necessity, and balancing/ proportionality stricto sensu. The Court emphasised that the State must consider whether a less restrictive but equally effective alternative is available and that restrictions cannot be excessive in relation to their objective.

5) The Security Question Before the Committee

- The evolution of India's security environment raises several questions that remain relevant today.
- What should constitute an act of aggression when an attack is carried out through a proxy organisation rather than a conventional military force? How should India respond to cyberattacks when establishing the identity of the attacker itself may be difficult? Where should the line be drawn between legitimate security measures and excessive surveillance? How can the Union Government respond to national-security threats while respecting India's federal structure and the constitutional rights of citizens?
- For the committee, the objective should therefore not simply be to identify threats, but to examine how India can build a security framework that is capable of responding to them while remaining consistent with the constitutional and democratic principles of the Republic.

6) Key Legal Question Before the Committee

- How should India distinguish genuine hybrid-warfare activity from legitimate political dissent, journalism, protest and criticism of government policy?
- Where a cyberattack, disinformation campaign or coordinated influence operation has an overseas origin, what combination of domestic law, international cooperation and diplomatic measures is appropriate?
- How can preventive and national-security powers be exercised while maintaining constitutional protections of liberty, speech, due process and judicial oversight?
- Should India develop a more integrated statutory framework specifically addressing hybrid warfare, or should existing laws be strengthened and better coordinated?
- How should responsibility be allocated between the Union, States, armed forces, intelligence agencies, police, cyber-security institutions and private operators of critical infrastructure?

Conclusion

- The Indian security environment has evolved far beyond the traditional understanding of national defence. Contemporary threats increasingly operate across physical, digital, economic and informational domains, making the distinction between internal and external security increasingly complex.
- The deliberation before the Committee must therefore move beyond a purely reactive approach towards a preventive, intelligence-led, technologically capable and institutionally coordinated security framework. India must be equipped to address terrorism, proxy warfare, cyberattacks, drone-based threats, terror financing, disinformation, radicalisation and other emerging forms of hybrid warfare.
- At the same time, national security cannot exist independently of the Constitution. The State's responsibility to protect its citizens and territorial integrity must coexist with Fundamental Rights, federalism, rule of law, judicial review and democratic accountability.
- The objective of this committee is not merely to identify threats, but to deliberate upon sustainable, implementable and constitutionally sound solutions. Members are expected to move

beyond established narratives, critically examine existing policies, identify institutional gaps and present innovative solutions that address the realities of India's evolving security environment.

NOTE : *This Background Guide is intended to serve as an introduction and foundation to the agenda, and not as an exhaustive compilation of the research. Members are expected to bring their own research and perspectives to the committee. The Background Guide shall not be considered a source for citations during committee proceedings.*